

**Filing Attorney Information or Pro Se Litigant:**

Name \_\_\_\_\_

NJ Attorney ID Number \_\_\_\_\_

Law Firm/Agency Name \_\_\_\_\_

Address \_\_\_\_\_

\_\_\_\_\_

Telephone Number \_\_\_\_\_

In the Matter of,

\_\_\_\_\_,  
Name of Alleged Incapacitated Person (AIP)

an Alleged Incapacitated Person

Superior Court of New Jersey  
Chancery Division - Probate Part

County \_\_\_\_\_

Docket Number \_\_\_\_\_

**Civil Action****Verified Complaint to Appoint  
Guardian(s) of the Person and Estate  
(Property)**

I, \_\_\_\_\_, by way of verified complaint, say:

I am \_\_\_\_\_ years of age. I reside at \_\_\_\_\_, County of \_\_\_\_\_, and State of \_\_\_\_\_. I have domicile (permanent/legal residence) at \_\_\_\_\_. My relationship to the alleged incapacitated person (AIP) is \_\_\_\_\_. My interest in this action is the welfare of the alleged incapacitated person.

I am (check one)

☐ the only individual bringing this action for guardianship; **OR**☐ one of two or more individuals bringing this action for guardianship. Below is the name, age, present residence, and permanent/legal residence (domicile) of the other applicant(s).

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

1. The name, age, present address, permanent/legal residence (domicile), and marital status of the alleged incapacitated person are as follows:

Name \_\_\_\_\_ Age \_\_\_\_\_

Present Address \_\_\_\_\_

How long at this address? \_\_\_\_\_ Marital Status \_\_\_\_\_

Permanent/Legal Residence (Domicile) \_\_\_\_\_

Spouse's information, if married:

Name \_\_\_\_\_ Age \_\_\_\_\_

Present Address \_\_\_\_\_

Permanent/Legal Residence (Domicile) \_\_\_\_\_

If applicable:

☐ Not Applicable

The alleged incapacitated person \_\_\_\_\_, has been determined eligible for services from the New Jersey Division of Developmental Disabilities (DDD).

If applicable:

☐ Not Applicable

The alleged incapacitated person has been receiving services from the DDD since \_\_\_\_\_.  
Currently, these services consist of:

\_\_\_\_\_  
\_\_\_\_\_

3. The alleged incapacitated person, \_\_\_\_\_, has been diagnosed as having \_\_\_\_\_, as set forth by the attached affidavit or certification of \_\_\_\_\_, (Physician or Psychologist). Because of this condition, \_\_\_\_\_ lacks sufficient capacity to govern him/herself to the extent set forth below.
4. The functional capacity of the alleged incapacitated person is further detailed by **one** of the following documents, attached to this complaint: (check one)
- ☐ A copy of the Individualized Education Program (IEP) for the alleged incapacitated person; **OR**
- ☐ An affidavit or certification from the chief executive officer, medical director, or other officer having administrative control over the DDD program from which the alleged incapacitated person is receiving services; **OR**
- ☐ An affidavit or certification from a designee of the DDD having personal knowledge of the functional capacity of the AIP; **OR**
- ☐ A second affidavit or certification of a physician or psychologist; **OR**
- ☐ An affidavit or certification from a licensed care professional having personal knowledge of the functional capacity of the alleged incapacitated person.
5. The names, addresses, relationships and ages of the persons most closely related to the alleged incapacitated person (parents, children, siblings) are as follows:

| Name  | Address | Relationship to AIP | Age   |
|-------|---------|---------------------|-------|
| _____ | _____   | _____               | _____ |
| _____ | _____   | _____               | _____ |
| _____ | _____   | _____               | _____ |
| _____ | _____   | _____               | _____ |
| _____ | _____   | _____               | _____ |

If applicable:

☐ Not Applicable

The name and address of the person or institution having the care and custody of the alleged incapacitated person is as follows:

\_\_\_\_\_  
\_\_\_\_\_

If applicable:

☐ Not Applicable

If the alleged incapacitated person has lived in an institution, the date(s) of any commitment or confinement and by what authority committed or confined, are as follows:

**Institution**

**Period(s) of Residence**

|       |       |
|-------|-------|
| _____ | _____ |
| _____ | _____ |
| _____ | _____ |

If applicable:

☐ Not Applicable

The name(s) and address(es) of any person(s) named as an attorney-in-fact in any power of attorney, and/or any person named as health care representative in any health care directive, and/or any person acting as trustee under a trust for the benefit of the alleged incapacitated person, are as follows:

**Name**

**Role** (Attorney-In-Fact, Health Care Representative, Trustee)

|       |       |
|-------|-------|
| _____ | _____ |
| _____ | _____ |
| _____ | _____ |
| _____ | _____ |
| _____ | _____ |

6. The name(s), address(es), relationship to the alleged incapacitated person, age and telephone number of the proposed guardian(s) are as follows: (attach additional pages as necessary).

Name \_\_\_\_\_

Address \_\_\_\_\_

Relationship \_\_\_\_\_ Age \_\_\_\_\_ Telephone No. \_\_\_\_\_

Name \_\_\_\_\_

Address \_\_\_\_\_

Relationship \_\_\_\_\_ Age \_\_\_\_\_ Telephone No. \_\_\_\_\_

Name \_\_\_\_\_

Address \_\_\_\_\_

Relationship \_\_\_\_\_ Age \_\_\_\_\_ Telephone No. \_\_\_\_\_

7. Information about the real and personal property and income of the alleged incapacitated person is set forth in the attached Certification of Assets.

8. Guardianship of the person and estate is requested at this time. (check one)

☐ I request that the court appoint the Office of the Public Defender Division of Mental Health Advocacy, *pro bono* (without cost), to represent the alleged incapacitated person. I understand that the guardianship hearing may be scheduled on a later date if the Office of the Public Defender Division of Mental Health Advocacy is appointed as counsel.

**OR**

☐ I request that the court appoint a private attorney, potentially for cost, to represent the alleged incapacitated person. I understand that if the assets of the alleged incapacitated person are insufficient to cover the fee charged by the court-appointed attorney, then the court may order that I pay that fee.

9. Request for Guardianship of the Person (check one)

**Option 1:**

☐ **Request for General (Full) Guardianship of the Person**

The condition of \_\_\_\_\_ renders him/her without the necessary cognitive capacity to govern himself/herself in **all** areas (including medical, legal, residential, educational, and vocational). \_\_\_\_\_ requires a general (full) guardian of the person.

WHEREFORE, the plaintiff(s) demand(s) judgment pursuant to *N.J.S.A. 30:4-165.7*, declaring \_\_\_\_\_ to be suffering from a chronic functional impairment that renders him/her incapable of governing himself/herself in all areas, and appointing \_\_\_\_\_ as **general (full) guardian(s) of the person** of \_\_\_\_\_.

**OR**

**Option 2:**

☐ **Request for Limited Guardianship of the Person**

The condition of \_\_\_\_\_ renders him/her without the necessary cognitive capacity to govern himself/herself in **some** areas. However, \_\_\_\_\_ retains the necessary cognitive capacity to make some decisions regarding his/her person and requires a limited guardian.

Specifically, \_\_\_\_\_ retains the capacity to make decisions regarding the following areas: (check all that apply)

- ☐ medical decision making      ☐ legal decision making      ☐ vocational decision making  
☐ residential decision making      ☐ educational decision making  
☐ other (voting, driving, etc.) \_\_\_\_\_

WHEREFORE, the plaintiff(s) demand(s) judgment pursuant to *N.J.S.A. 30:4-165.7*, declaring \_\_\_\_\_ to be suffering from a chronic functional impairment that renders him/her incapable of governing himself/herself in some areas, and appointing \_\_\_\_\_ as **limited guardian(s) of the person** of \_\_\_\_\_.

\_\_\_\_\_  
Date

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Print Name

10. Request for Guardianship of the Estate (check one)

**Option 1:**

☐ **Request for General (Full) Guardianship of the Estate (Property)**

The condition of \_\_\_\_\_ renders him/her without the necessary cognitive capacity to manage his/her affairs in **all** areas. \_\_\_\_\_ requires a general (full) guardian of the estate.

WHEREFORE, the plaintiff(s) demand(s) judgment pursuant to *N.J.S.A. 30:4-165.7*, declaring \_\_\_\_\_ to be suffering from a chronic functional impairment that renders him/her incapable of managing his/her affairs in all areas, and appointing \_\_\_\_\_ as **general (full) guardian(s) of the estate** of \_\_\_\_\_.

OR

**Option 2:**

☐ **Request for Limited Guardianship of the Estate (Property)**

The condition of \_\_\_\_\_ renders him/her without the necessary cognitive capacity to manage his/her affairs in **some** areas. However,

\_\_\_\_\_ retains the necessary cognitive capacity to make some decisions regarding his/her estate and requires a limited guardian of the estate.

Specifically, \_\_\_\_\_ retains the capacity to make decisions regarding the following areas: (describe)

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WHEREFORE, the plaintiff(s) demand(s) judgment pursuant to *N.J.S.A. 30:4-165.7*, declaring \_\_\_\_\_ to be suffering from a chronic functional impairment that renders him/her incapable of managing his/her affairs in some areas, and appointing

\_\_\_\_\_ as **limited guardian(s) of the estate** of \_\_\_\_\_.

\_\_\_\_\_  
Date

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Print Name

**Verification**

I/We \_\_\_\_\_ hereby certify and say:

1. I/We am/are the plaintiff(s).
2. The contents of the Verified Complaint for Guardianship are true to the best of my/our knowledge.

\_\_\_\_\_  
Date

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Print Name

\_\_\_\_\_  
Date

\_\_\_\_\_  
Signature

\_\_\_\_\_  
Print Name